

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

**In the matter of an appeal in terms of
Section 331(10 of the Code of Criminal
Procedure Act No. 15 of 1979 read
with Article 138 (1) of the Constitution
of the Democratic Socialist Republic
of Sri Lanka.**

Hon. Attorney General,
Attorney General's Department,
Colombo 12

Complainant

Court of Appeal No.
CA/HCC/0042/2025

High Court of Awissawella
Case No: HCA 17/2018

Vs.

Wickramaarachchige Udayashantha
Pushpakumara

Accused

AND NOW BETWEEN

Wickramaarachchige Udayashantha
Pushpakumara

Accused- Appellant

Vs.

Hon. Attorney General,
Attorney General's Department,
Colombo 12

Complainant – Respondent

Before: **Amal Ranaraja, J.**
 Dr. Sumudu Premachandra, J.

Counsel: Prashan Wickramaratne for the Accused-Appellant

Yuhan Abeywickrama, D.S.G. for the Respondent

Argued on: 11.06.2026

Decided on: 30.06.2026

Judgment

Amal Ranaraja, J.,

1. The accused-appellant (hereinafter referred to as the ‘appellant’) has been indicted in the High Court of *Awissawella* in Case No. HCA 17/2018. The charge in the indictment is as follows;

01. That on around the 25th of January, 2016, in *Hanwella*, within the jurisdiction of this Court, you have caused the death of one *Nalaka Mihira Abeyrathne*, thereby committing an offence of Murder, punishable under Section 296 of the Penal Code of Sri Lanka.

2. At the conclusion of the trial, the appellant has been convicted of the charge and sentenced to death. The appellant being aggrieved by the conviction, disputed judgement and the sentencing order has preferred the instant appeal to this Court.

Case of the Prosecution

3. PW02, and PW01 have been employed as the driver and conductor of a bus. On the date of the incident, they have finished their work for the day and have been taking the bus to its overnight parking location. At this point, the appellant has boarded the bus with PW01's permission and taken a seat at the back, while PW01 has remained in the front.
4. A while later the deceased has also entered the bus from the rear and remained there. Subsequently, PW01 has heard noise from the back of the bus and seen the deceased walking towards the front, holding his chest and bleeding from that area.
5. The appellant, who was at the rear has then disembarked from the bus. PW01 and PW02 have immediately driven the deceased to the *Nawagamuwa* hospital. The deceased has died at the hospital.
6. *Dr. A. Dayapala*, Consultant Judicial Medical Officer has conducted the post-mortem examination and the resulting report, marked *ඒ 02*, has been submitted as evidence. *Dr. Dayapala* has concluded that the death was caused by a stab injury to the chest.

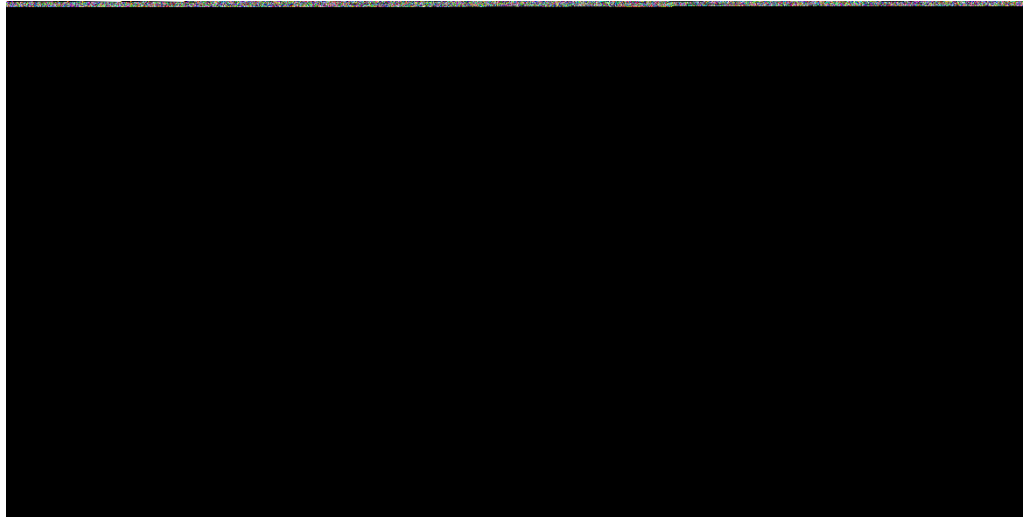
Case of the Appellant

7. While the appellant has admitted boarding the bus, he has denied causing injuries to the deceased.

Grounds of Appeal

8. When the matter was taken up for argument, the learned Counsel appearing on behalf of the appellant has urged the following grounds of appeal;

- i. The learned Magistrate and learned High Court Judge have erred in law, by failing to comply with the mandatory provisions of Sections 374 and 375 of the Code of Criminal Procedure Act No. 15 of 1979, thereby violating the appellant's right to a fair trial.
 - ii. The proceedings before the High Court are vitiated in law as there was no valid or proper committal of the appellant to the High Court to stand trial.
9. The Counsel for the appellant has contended that the appellant, due to a medical illness he was suffering from, was unfit to stand trial, and to attend proceedings in the High Court. That his condition, prevented him from providing proper instructions to his Counsel to make a proper defense, thereby denying him a fair trial.
10. The appellant has been arrested on January 25th, 2016, in connection to the incident for which the indictment was forwarded. Following the directions of the learned Magistrate of *Awissawella*, the appellant has subsequently been produced before Consultant Psychiatrist, *Dr. Susil Kulathilaka* for examination.
11. During this assessment, *Dr. Kulathilaka* has opined that the appellant was suffering from schizophrenia. Consequently, the appellant has been admitted to the National Institute of Mental Health for treatment.
12. After undergoing treatment, the appellant has since recovered. This recovery is documented in a medical report dated April 12th, 2016, which has been prepared by Consultant Forensic Psychiatrist, *Dr. L.A.P. Alwis*. The summary and the recommendations of this report state as follows;



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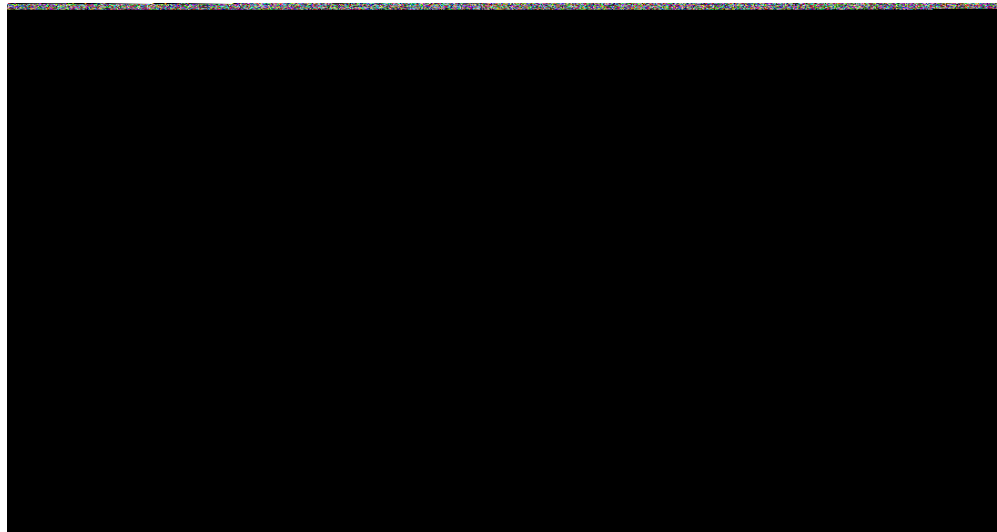
13. Thereafter the non-summary inquiry has been held and the learned magistrate has considered the evidence sufficient to put the appellant on trial. Consequently, committed the appellant for trial before the High Court.
14. The trial against the appellant has commenced in the High Court of *Awissawella*, after the indictment was forwarded. Initially, the appellant has retained a counsel, who has later withdrawn from the case citing lack of sufficient instruction from the accused.
15. Consequently, other counsel have been assigned on the appellant's behalf. They too have withdrawn, explaining that they did not receive adequate instructions which they have attributed to the appellant's illness. On May 14th, 2024, the comprehensive application has been submitted on the appellant's behalf. This application has asserted a prior history of the appellant being mentally ill and has requested for a '*voir dire*' inquiry to determine his current mental status. It has been further argued that if the appellant was mentally ill and unfit to stand trial, he would be denied a fair trial.
16. Section 375 of the Code of Criminal Procedure Act No. 15 of 1979 (as Amended) is as follows;

“375. (1) If any person Committed for trial before the High Court appears to the court at his trial to be of unsound mind and consequently incapable of making his defence, the jury or (where the trial is without a jury) the Judge of the High Court shall in the first instance try the fact of such unsoundness and incapacity, and if satisfied of the fact shall find accordingly and thereupon the trial shall be postponed.

(2) The trial of the fact of the unsoundness of mind and incapacity of the accused shall be deemed to be part of his trial before the court.”

17. This particular section stipulates that if an accused person, during his trial appears to be of unsound mind and is consequently incapable of presenting a defense, the learned High Court Judge shall first conduct a “*voire dire*” inquiry to determine such matter. If the judge is satisfied with such finding, the trial should be postponed, and measures must be taken as outlined in section 376(1) and (2) to ensure the accused receives the necessary medical attention.

18. However, the learned High Court Judge has denied the application. He has maintained that no medical report regarding the appellant’s mental has been presented to the High Court. Furthermore, that the prosecution has not agreed to a ‘*voire dire*’ inquiry and the trial was in its final stages;



19. The learned High Court Judge has not adequately considered the mandatory provision in Section 375 of the Code of Criminal Procedure Act No. 15 of 1979, in its proper spirit and thereby misdirected himself.

20. Further, an omission to decide on the preliminary issue i.e., mental condition of the accused, shall vitiate the whole trial when there's no proper inquiry.

21. Under these circumstances, I set aside the conviction, disputed judgement and the sentencing order. I consequently order a retrial.

22. The learned High Court Judge shall, prior to the commencement of the trial, conduct a '*voire dire*' inquiry to determine whether the appellant is fit to plead, stand trial and attend court. If at the conclusion of this inquiry it is found that the appellant is not fit to do so, the learned High Court Judge shall take action, as stipulated in the Code of Criminal Procedure Act No. 15 of 1979, to ensure the appellant receives treatment and to postpone the trial. Otherwise, the trial proceedings shall be expedited.

23. I make no order regarding costs

Retrial ordered

24. The Registrar of this Court is directed to send this Judgement to the High Court in *Awissawella* for compliance.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal